

Court No. - 3

Case :- WRIT - C No. - 42699 of 2023

Petitioner :- M/S Baba Floor Ata Mills And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Awadhesh Kumar Shukla, Harish Yadav

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Instructions filed today be kept on record.

This is a second writ petition. In the earlier writ petition being Writ - C No. 36329 of 2023, when only the provisional assessment order was provided to the petitioner, the Court had observed that as and when the final assessment order was passed, the petitioner could challenge the same.

Now, we find that the final assessment order has been passed.

Under such circumstances, if the petitioner so desired he may file an appeal ventilating his grievances before the Appellate Authority. If the petitioner is aggrieved by the fact that the provision of Clause 6.8 (c) (iii) of the Electricity Supply Code, 2005, had not been followed, he may also raise this ground before the appellate Court.

With these observations, the writ petition is disposed of.

Order Date :- 16.12.2023

PK

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)